

CITY COUNCIL AGENDA ITEM COVER SHEET

DATE OF COUNCIL MEETING: October 14, 2013

TYPE OF DOCUMENT: (*ORDINANCE) (*RESOLUTION) *NEED SPONSOR
 (PRELIMINARY PLAT/PRELIMINARY ZONE CHANGE) (XLEASE/CONTRACT)
 (CHANGE ORDER/CONTRACT MODIFICATION) (CONSIDERATION OF BID)
 (APPLICATION/LICENSE/PERMIT) (APPOINTMENT)
 (ANNOUNCEMENT/REPORT/MOTION)

SPONSOR(S) : (ORDINANCES/RESOLUTIONS ONLY) _____

EXACT WORDING OF ENTITLEMENT/ITEM: Agreement with WYDOT for a WY Rural Public
Transportation grant to assist in providing local match for operating funds for
the transit program for FY2014.

1% Sales Tax Funding/Years: _____

Other Funding _____ Grant 5311CONTACT PERSON: Joe Dougherty PHONE: 307-637-6383 DEPT. Transit

OTHER CITY DEPTS AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: _____

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: \$112,290 in operating
assistance to the transit program.

CONTRACT TERM: FY2014 STARTING DATE: October 1, 2013

	YES	NO	N/A
Is funding budgeted?	(<u>X</u>)	(<u> </u>)	(<u> </u>)
Were Bids called for?	(<u> </u>)	(<u> </u>)	(<u>X</u>)
Affected parties notified of Council procedure & dates?	(<u>X</u>)	(<u> </u>)	(<u> </u>)
Has bond, insurance or other security been arranged?	(<u> </u>)	(<u> </u>)	(<u>X</u>)
Have legal descriptions been checked?	(<u>X</u>)	(<u> </u>)	(<u> </u>)

Agenda item reviewed and/or approved by:

Risk Mgr (X) City Attorney (X) Dept. Head (X)

General Comments: _____

Submitted by: _____ Title: _____ Date: _____

UPON PASSAGE OF THIS AGENDA ITEM, COPIES SHOULD BE SENT TO:



Approved as to
form only:

QYT

Date: 10/2/13

**WYOMING RURAL PUBLIC TRANSIT PROGRAM FY 2014 AGREEMENT
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE, DBA CHEYENNE TRANSIT PROGRAM**

Federal Award Information	
CFDA No. 20.509	CFDA Title: Non-Urbanized Area Formula Grants
Award Name: FY 2014 Rural Public Transit Program	Awarding Federal Agency: Federal Transit Administration
WYDOT Award Information	
Agreement No.: RPT-14-41	Project No.: FT14041
Recipient DUNS: 075758169	Recipient County: Laramie
WYDOT Program Mgr.: Talbot Hauffe	Telephone: 307-777-4384 Email: tjhauffe@wyo.gov
WYDOT Contact for Confirmation of Funds: Barbara MacKenzie	Telephone: (307) 777-4039 Email: barbara.mackenzie@wyo.gov

1. **Parties.** The parties to this Agreement are the Wyoming Department of Transportation, hereinafter referred to as "WYDOT", whose address is 5300 Bishop Blvd., Cheyenne, WY 82009, and the City of Cheyenne, DBA Cheyenne Transit Program, hereinafter referred to as the "Recipient", whose address is 322 West Lincolnway Cheyenne, WY 82001, and acting by and through Joe Dougherty, Director, its duly authorized representative.
2. **Purpose.** The purpose of this Agreement is to provide for the undertaking of transportation services to the general and special public (hereinafter referred to as "Project") by the Recipient and to state the terms, conditions and mutual understandings of the parties as to the manner in which the Project will be undertaken and completed.

WYDOT has been approved by Wyo. Stat. § 24-15-102 to administer these program funds in accordance with guidelines of the Wyoming Transportation Program Management Plan.

WYDOT and the Recipient desire to secure and utilize grant funds for the public transportation needs in small urban and rural areas in the State of Wyoming.
3. **Term of Agreement.** The Recipient shall commence and carry on the Project with all practical dispatch in a sound, economical and efficient manner. This Agreement is for the period of one year, commencing October 1, 2013 and ending September 30, 2014.
4. **In consideration of the mutual covenants herein set forth, WYDOT and the Recipient agree as to the following General Conditions:**



- a. **Project Scope.** The Recipient shall undertake and complete the Project as described in its application, herewith incorporated by reference, filed with and approved by WYDOT in accordance with the terms and conditions of this Agreement.
- b. **Project Allocation.** The total project allocation is \$198,532.00, comprised of \$112,290.00 State and \$86,242 Local Funding. These funds shall be borne in the manner described in the notification Grant Application award. The Recipient agrees that it will provide from local and unrestricted Federal funds, monies in the amount sufficient together with the Grant to assure payment of the actual Project costs. The Recipient's eligible costs incurred shall be reimbursed on an approved WYDOT reimbursement request form. WYDOT reserves the right to request support documentation for any and all submittals. WYDOT will reimburse those eligible costs based on the program guidelines for the item categories and its appropriate reimbursement ratio. Requests for reimbursement shall be submitted monthly, but may not exceed quarterly submittals. Therefore, reimbursement requests for expenses more than three months removed from the reimbursement request submittal to WYDOT may not be processed for payment by WYDOT. Final invoices for payment will be accepted by WYDOT no later than the 15th of November of the following fiscal year of the Agreement. The basis for reimbursement shall be Operating: Federal/State 56.56 percent, Local 43.44 percent; Administration: Federal/State 80.00 percent, Local 20.00 percent; Maintenance: Federal/State 80.00 percent, Local 20.00 percent; and Capital: Federal/State 80.00 percent, Local 20.00 percent. The Recipient shall initiate and prosecute to completion all actions necessary to enable the Recipient to provide its share of the Project costs at or prior to the time that such funds are needed to meet Project costs.

This Agreement is required to comply with the Federal Funding Accountability and Transparency Act (FFATA) of 2006. As the prime recipient of these funds, WYDOT will report the required information to the Federal Funding Accountability and Transparency Act Subaward Reporting System (FSRS). The FFATA requires any person or entity receiving contract or grant funds directly from the federal government to report certain information regarding those funds through a centralized website, www.fsr.gov. The law requires that you provide your Data Universal Numbering System (DUNS) number to WYDOT. This requirement means you need to be registered with DUNS and Bradstreet. Instructions for this process can be found at www.dnb.com. Additional information regarding this Act may be found at the following sites:

<http://edocket.access.gpo.gov/2010/pdf/2010-22705.pdf>
and
<http://edocket.access.gpo.gov/2010/pdf/2010-22706.pdf>.



- c. **Purchase of Project Equipment.** The purchase of all Project Equipment financed in whole or in part pursuant to this Agreement shall be undertaken by WYDOT on behalf of the Recipient or with prior WYDOT approval in accordance with the procedures established by WYDOT. Purchases of over \$1,000.00 using Federal or State funds will be subject to approval of WYDOT in accordance with established procedures.
- d. **Title to Project Equipment.** Title to Project Equipment shall be in the name of the Recipient subject to the restrictions on use and disposition of the Project Equipment set forth herein. The following notification shall be typed on the face of the title document of each vehicle by the County Clerk: "This vehicle was purchased in part with federal and/or state funds through the Wyoming Department of Transportation and the Federal Transit Administration (FTA). This vehicle CANNOT be used as collateral or traded without the express permission in writing from WYDOT."
- e. **Use of Project Equipment.** The Recipient agrees that the Project Equipment, and/or facilities, shall be used for the purpose for which it was acquired, as long as it is needed in the Project. If the Project Equipment is no longer needed, or cannot be used for the intended purpose; prior to selling or otherwise disposing of the Project Equipment, the Recipient shall immediately notify WYDOT. Before selling or otherwise disposing of the Project Equipment, the Recipient must receive a written letter from WYDOT allowing the sale or disposal. The Recipient shall not execute any lease, pledge, mortgage, lien, or other contract touching or affecting the Federal interest in any Project Equipment, nor shall it obligate itself in any other manner, with any third party with respect to the Project Equipment, unless such lease, pledge, mortgage, lien, contract, or other obligation is either in conformance with the standards of Federal Transit Administration (FTA) guidelines or is otherwise expressly authorized in writing by WYDOT; nor shall the Recipient or any other organization that obtains facilities or equipment through this Grant, by any act or omission of any kind, impair its continuing control over the use of Project Equipment. The Recipient shall maintain satisfactory records with regard to the use of the property and submit to WYDOT upon request such information as is required in order to assure compliance with this section. The Recipient shall immediately notify WYDOT in all cases where Project Equipment is used in a manner substantially different from that described in the Project description. The Recipient shall maintain an amount and form satisfactory to WYDOT such insurance or self-insurance as will be adequate to protect Project Equipment throughout the period of required use. The Recipient shall also submit to WYDOT, on a triennial basis, a certification that the Project Equipment is still being used in accordance with the terms of this section and that no part of the local contribution to the cost of the Project has been refunded or reduced. During the period of contract performance, the Recipient shall maintain the Project Equipment at a high level of cleanliness, safety and mechanical soundness. WYDOT and the FTA shall have the right to monitor maintenance



records in order to confirm that proper upkeep has been conducted pursuant to this section.

- f. **Prohibited Interest.** No member, officer or employee of the Recipient during his tenure shall have any interest, direct or indirect, in this Agreement or the proceeds thereof.
- g. **Restrictions, Prohibitions, Controls and Labor Provisions.**
 - (i) **Equal Employment Opportunity.** In connection with the carrying out of the Project, the Recipient shall not discriminate against any employee or applicant for employment because of race, color, age, creed, sex, national origin or disability. The Recipient shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, creed, sex, age, national origin or disability. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship.
 - (ii) **Disadvantaged Business Enterprise (DBE) Requirements.**
 - 1. **Policy.** It is the policy of WYDOT that disadvantaged business enterprises, defined as Minority Business Enterprises and Woman Business Enterprises, shall have the maximum opportunity to participate in the performance of contracts financed in whole or in part with Federal funds under this Agreement. Consequently, the DBE requirements of 49 CFR Part 26 apply to this Agreement.
 - 2. **DBE Obligation.** The Recipient or its contractor agrees to ensure that disadvantaged business enterprises as defined in 49 CFR Part 26 have the maximum opportunity to participate in the performance of contracts and subcontracts financed in whole or in part with Federal funds provided under this Agreement. In this regard, all Recipients shall take all necessary and reasonable steps in accordance with 49 CFR Part 26 to ensure that DBE's have the maximum opportunity to compete for and perform contracts. The Recipient and their contractors shall not discriminate on the basis of race, color, national origin, or sex in the award and performance of WYDOT assisted contracts.
 - (iii) **Title VI Civil Rights Act of 1964.** The Recipient shall comply and shall assure the compliance by contractors and subcontractors under this Project with all the requirements imposed by Title VI of the Civil Rights Act of 1964 (49 U.S.C. 2000d), the Regulations of the Department of Transportation (DOT) issued thereunder, 49 CFR Part 21, and the Assurance by the Recipient pursuant thereto.
 - (iv) **Compliance with Elderly and Disabled Regulations.** The Recipient shall comply with applicable regulations regarding transportation for Elderly



and Disabled person, set forth in 49 CFR Part 27 and the Americans with Disabilities Act of 1990.

h. Motor Vehicle Safety.

- (i) Motor Vehicle Safety Standards. The motor vehicles will comply with the Motor Vehicle Safety Standards and Pollution requirements as established by the United States Department of Transportation.
- (ii) Motor Vehicle Requirements. When new motor vehicles are purchased, there shall be obtained from each vendor a certification in writing that: "The horsepower of the vehicle is adequate for the speed, range and terrain in which it will be required to operate and also to meet the demands of all auxiliary power equipment."

i. Nondiscrimination On The Basis of Disability - 504 Regulations.

- (i) The Recipient shall ensure to WYDOT that persons with disabilities and groups representing them have had adequate notice of and opportunity to comment on the present and proposed plans for providing transportation to disabled persons unable to use general public service.
- (ii) The Recipient must certify to WYDOT that special efforts are being made to provide transportation to eligible disabled persons. This service must be reasonable in cost, meet a significant fraction for such transportation needs, and be provided within a reasonable time.
- (iii) The Recipient is to submit a status report to WYDOT (updated every three years). The report must include:
 - 1. A description of the service to the disabled, as compared to the general public service.
 - 2. Copies or a summary of the comments received in response to the opportunity to comment.
 - 3. A statement of any plans to significantly modify the services.
 - 4. A statement of the resources devoted to the disabled service.

j. Safety Jurisdiction. FTA requires that all Recipients operate their service in a safe manner and not allow any conditions to develop that "create a serious hazard of death or injury."

Safety Training Classes are a **mandated requirement** of the Safety Jurisdiction clause. Safety Training and Passenger Assistance Training (PASS) or equal approved training, ADA compliance training, and other technical training programs are required on a regular basis (as specified by the State Management Plan). The Wyoming Public Transportation Association (WYTRANS) may charge reasonable fees for the training. WYTRANS shall record all such program income, attendance (names and agencies) and costs. WYTRANS shall maintain records and files of this training information. The Recipient shall maintain independent employee training records for their file as well. The Recipient shall notify WYTRANS of any employee needed training to keep current with the



requirements of this section. If safety violations are found and a Recipient fails to correct them, or comply with the training mandate, further financial assistance may be withheld.

- k. **Emergency Management.** All Recipients are required by WYDOT to cooperate and coordinate with Emergency Management agencies in their area during natural or man-made disasters. All FTA vehicles shall be used to transport people and/or equipment as directed by WYDOT. All Recipients shall use their communication equipment to insure timely evacuation of elderly and disabled people in their area.

l. **Records and Reports.**

- (i) Establishment and Maintenance of Accounting Records. The Recipient shall establish and maintain, in accordance with requirements established by WYDOT, separate accounts for the Project, either independently or within its existing accounting system, to be known as the Project Account.
- (ii) Documentation of Project Costs. All charges to the Project Account shall be supported by properly executed invoices, contracts or vouchers evidencing in proper detail the nature and propriety of the charges, in accordance with the rules and regulations of WYDOT. Copies and/or supporting documentation of such invoices, contracts or vouchers may be included with monthly billing statements to cover all charges submitted for payment. The original documentation should be maintained by the Recipient in the Project file and must be available to WYDOT upon request.
- (iii) Checks, Orders and Vouchers. Any check or order drawn by the Recipient with respect to any item which is or will be chargeable against the Project Account will be drawn only in accordance with a properly signed voucher then on file in the office of the Recipient stating in proper detail the purpose for which such check or order is drawn. All checks, invoices, contracts, vouchers, orders or other accounting documents pertaining in whole or in part to the Project shall be clearly identified, readily accessible and, to the extent feasible, kept separate and apart from all other such documents.
- (iv) Reports. The Recipient shall advise WYDOT regarding the progress of the Project at such times and in such manner as WYDOT may require, including, but not limited to meetings and interim reports. The Recipient shall submit, accompanying the monthly reimbursement report, ridership data reports on approved WYDOT forms. Requests for reimbursement will not be processed for payment by WYDOT without a completed ridership data for the period of the reimbursement request. The Recipient shall submit to WYDOT, or its authorized representatives, an inventory of all vehicles, facilities, and equipment purchased by the Recipient as part of the Project, all transportation services rendered by the Recipient by the use of such vehicles, facilities and equipment, and all relevant Project data and records. The Recipient shall also permit the above-named persons to examine the books, records and accounts of the Recipient pertaining to the



Project. If the Recipient has an audit performed for their own purposes, the Recipient agrees to provide WYDOT with a copy of such audit report. The Recipient shall keep records and audit reports on file for three years after the close of their fiscal year.

- m. **Required Clauses.** The Recipient shall include in all subcontracts and entered into pursuant to this Agreement all of the above required clauses. In addition, the following required provision shall be included in any advertisement of invitation to bid for any procurement under this Agreement: "Statement of Financial Assistance. This contract is subject to a financial assistance contract between WYDOT and the Federal Transit Administration."

5. General Provisions:

- a. **Amendments.** Either party may request changes in this Agreement. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- b. **Americans with Disabilities Act.** The Recipient shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. 12101, *et seq.*, and/or any properly promulgated rules and regulations related thereto.
- c. **Applicable Law and Venue.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.
- d. **Assignment/Agreement Not Used as Collateral.** Neither party shall assign nor otherwise transfer any of the rights or delegate any of the duties set forth in this Agreement without the prior written consent of the other party. The Recipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- e. **Assumption of Risk.** The Recipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the Recipient of any state or federal determination of noncompliance.
- f. **Audit/Access to Records.** According to the Office of Management and Budget (OMB) Circular A-133, Recipients that expend \$500,000 or more in total federal awards during their fiscal year must:
 - Have a single audit or program-specific audit conducted; and



- The audit must be submitted to the Federal Audit Clearinghouse within the earlier of 30 days after receipt of the auditor's report(s), or within 9 months after the end of the audit period, unless a longer period is agreed to in advance by the Federal agency that provided funding or a different period is specified in a program-specific audit guide.
- No audit costs may be charged to Federal Awards when required audits have not been made or have been made but not in accordance with OMB Circular A-133. In cases of inability or unwillingness to have an audit conducted in accordance with OMB Circular A-133, Federal agencies and pass-through entities shall take appropriate action using sanctions as follows:
 - Withholding a percentage of Federal awards until the audit is completed satisfactorily;
 - Withholding or disallowing overhead costs;
 - Suspending Federal awards until the audit is conducted; or
 - Terminating the Federal award.

In addition to the above requirements, WYDOT Internal Review requires Recipients to:

- Provide a certification letter to WYDOT that states:
 - If the above-mentioned audit was conducted,
 - If the schedule of findings and questioned costs disclosed any audit findings related to WYDOT funding, and
 - If the summary schedule of prior audit findings reported on the status of any audit findings related to WYDOT funding.
- Provide WYDOT with a copy of the Recipient's audit report and corrective action plan only when the audit report includes material findings related to WYDOT funding.

A copy of the certification and/or audit report should be sent to:
Wyoming Department of Transportation
Internal Review Services
5300 Bishop Boulevard
Cheyenne, WY 82009-3340

Allocated funds from the Federal Transit Administration (FTA) to the Wyoming Department of Transportation (WYDOT) are passed through to the Recipient. These funds are designated under CFDA # 20.509 Formula Grants for Other Than Urbanized Areas and/or CFDA #20.500 Capital Investment Grants, and should be identified as such in the audit report.

The Recipient may be subject to monitoring activities by WYDOT including on-site visits, review of supporting documents, and limited scope audits. The Recipient shall permit independent auditors, FTA personnel and WYDOT auditors, access to any pertinent books, documents, papers, and records necessary to perform monitoring of activities. The Recipient shall keep audit reports and



audit documents on file for three years after the project is complete. The audit is the sole responsibility of the Recipient.

- g. Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the Recipient, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the Recipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to terminate this Agreement in order to acquire similar services from another party.
- h. Compliance with Law.** The Recipient shall keep informed of and comply with all applicable, Federal, State and local laws and regulations in the performance of this Agreement.
- i. Contracts Under this Agreement.** Unless otherwise authorized in writing by WYDOT, the Recipient shall not assign any portion of the work to be performed under this Agreement, or execute any contract, amendment or change order thereto, or obligate itself in any manner with any third party with respect to its rights and responsibilities under this Agreement without the prior written concurrence of WYDOT.
- j. Entirety of Agreement.** This Agreement, consisting of 13 pages represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- k. Human Trafficking.** If required by 22 U.S.C. 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

 - (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Used forced labor in the performance of the award or subawards under the award.
- l. Kickbacks.**



- (i) The Recipient shall comply with the Copeland "Anti-Kickback" Act (18 U.S.C. 874) as supplemented in the Department of Labor Regulations (29 CFR, Part 3). This Act provides that the Recipient is prohibited from inducing by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he is otherwise entitled.
 - (ii) The Recipient certifies and warrants that no gratuities, kickbacks or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement.
 - (iii) No staff member of the Recipient shall engage in any contract or activity which would constitute a conflict of interest as related to this Agreement.
 - (iv) If the Recipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreement price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- m. **Nondiscrimination.** The Recipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105 *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. 12101, *et seq.* and the Age Discrimination Act of 1975. The Recipient shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin or disability in connection with the performance of this Agreement. In reference to Title VI Policy, WYDOT's Civil Rights Program is responsible for initiating and monitoring Title VI activities, preparing required reports and the WYDOT responsibilities as required by 23 Code of Federal Regulations (CFR) 200 and 49 CFR 21.
- n. **Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either delivered by hand or certified mail.
- o. **Prior Approval.** This Agreement shall not be binding upon either party unless this Agreement is approved as to form by the Attorney General or his representative.
- p. **Publicity.** Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Recipient and related to the services and work to be performed under this Agreement shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval of WYDOT.
- q. **Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full



force and effect, and either party may renegotiate the terms affected by the severance.

- r. **Sovereign Immunity.** The State of Wyoming and WYDOT do not waive sovereign immunity by entering into this Agreement, and the Recipient and its officials and employees do not waive governmental immunity, and each specifically retain all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the Recipient fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract, or any other theory of law based on this Agreement. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.
- s. **Suspension and Debarment.** By signing this Agreement, Recipient certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and CFR 44 Part 17, or are on the disbarred vendors list at www.epls.gov. Further, Recipient agrees to notify WYDOT by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.
- t. **Termination.**
- (i) For Convenience. WYDOT, or the recipient may terminate the Project and cancel this Agreement if both parties agree that the continuation of the Project would not produce beneficial results commensurate with the further expenditure of funds.
 - (ii) With Cause. WYDOT may, by written notice to the Recipient, terminate the Project and cancel this Agreement for any of the following reasons:
 - 1. The Recipient discontinues the use of such vehicles, equipment or facilities during their useful lives for the purpose of providing public or special public transportation services;
 - 2. The Recipient takes any action causing material detrimental effect to WYDOT pertaining to this Agreement without the approval of WYDOT and which under the procedures of this Agreement would have required the approval of WYDOT;
 - 3. The commencement, prosecution or timely completion of the Project by the Recipient is, for any reason, rendered improbable, impossible or illegal;



4. The Recipient shall remain in material default under any provision of this Agreement after having been given thirty (30) days prior written notice of such material default and not having cured such material default to the reasonable satisfaction of WYDOT during a thirty (30) day cure period.

(iii) (iii) The Recipient may, by written notice to WYDOT, terminate the project and cancel this Agreement if WYDOT is in material default under any provision of this Agreement, after having been given thirty (30) days prior written notice of such material default and not having cured such material default to the reasonable satisfaction of the Recipient during a thirty (30) day cure period.

(iv) Action Upon Termination. Upon termination of the Project and cancellation of this Agreement under the provisions of Paragraph (i) and (ii) of this Article, the Recipient agrees to dispose of the project equipment in accordance with WYDOT procedures.

u. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.

The terms of this Agreement, and any amendments thereto, shall be binding upon and inure to the parties hereto, their administrators and successors.

“THE REMAINDER OF THIS PAGE INTENTIONALLY LEFT BLANK”



6. **Signatures.** In witness whereof, the parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The effective date of this Agreement is the day and date last signed and executed by the duly authorized representatives of the parties to this Agreement, below.

ATTEST:

Title

(SEAL)

**CITY OF CHEYENNE, DBA
CHEYENNE TRANSIT PROGRAM:**

By: _____
Name, Title

Date

ATTEST:

Sandra J. Scott, Secretary
Transportation Commission of Wyoming

(SEAL)

**WYOMING DEPARTMENT OF
TRANSPORTATION:**

By: _____
Gregg C. Fredrick, P.E., Assistant
Chief Engineer – Engineering and Planning

Date

Approved as to form:

By: _____
Douglas J. Moench
Senior Assistant Attorney General
State of Wyoming